

CAUSE NO. _____
IN THE DISTRICT COURT OF {county} COUNTY, TEXAS
EX PARTE {petitionerName}
COUNTY OF EXAMPLE

JAMIE Q. SAMPLE,
Petitioner.

DOCKET NO.: [TO BE CONFIRMED]

PETITION FOR STREAMLINED EXPUNCTION ORDER AFTER SPECIALTY COURT DISMISSAL (TEX.
CODE CRIM. PROC. ART. 55A.203)

STATUTORY AUTHORITY

Tex. Code Crim. Proc. art. 55A.203 — The streamlined route. Where a case was dismissed following successful completion of a veterans treatment court programme under Gov't Code ch. 124 or a mental health court programme under ch. 125, a DISTRICT COURT may, with the consent of the attorney representing the state, enter an expunction order not later than the 30th day after the dismissal or after it receives the dismissal information.

Tex. Code Crim. Proc. art. 55A.203(c) — A court entering an order under the article may not charge any fee or assess any cost for the expunction.

Tex. Code Crim. Proc. art. 55A.203(d) — Added by S.B. 1667. The person must provide the court with the information required in an art. 55A.253 petition. That is what the information package component carries.

Tex. Code Crim. Proc. art. 55A.053(a)(2)(A) — One of the two entitlement grounds. The underlying entitlement lives here, not in art. 55A.203.

Tex. Code Crim. Proc. art. 55A.053(a)(2)(B) — The other entitlement ground.

Tex. Code Crim. Proc. art. 55A.053(b) — Recorded in the track authority.

Tex. Code Crim. Proc. art. 55A.053(c) — Recorded in the track authority. A person may receive only one expunction on each ground and must file an affidavit attesting to that fact.

Tex. Code Crim. Proc. art. 55A.253 — Supplies the required information the art. 55A.203(d) information package must carry, and the verification requirement.

Tex. Code Crim. Proc. art. 102.0061(d) — Requires waiver of the district-court filing fee where entitlement arises under art. 55A.053(a)(2)(A) or (B) — a second, independent no-cost provision alongside art. 55A.203(c).

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the Court of Common Pleas of EXAMPLE County, Pennsylvania, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in EXAMPLE County, Pennsylvania.

II. PARTIES

3. Petitioner is JAMIE Q. SAMPLE, whose address is 000 EXAMPLE STREET, EXAMPLE CITY, TX 00000.

4. Petitioner has also been known as: J. Q. SAMPLE.

III. FACTS AND CASE HISTORY

5. On or about 01/01/2024, Petitioner was charged with example offence by EXAMPLE COUNTY SHERIFF'S OFFICE.
6. The matter was assigned Docket Number [TO BE CONFIRMED].
7. The matter was resolved with the following disposition: Dismissed following successful completion of the programme — the participant's own account; the dismissal is a court act and is not asserted here. [DISPOSITION DATE TO BE CONFIRMED]
8. The offense grade was: Class A misdemeanour.

IV. ELIGIBILITY ALLEGATIONS

9. Petitioner may be eligible for expunction on the following basis: [ELIGIBILITY BASIS TO BE CONFIRMED].

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

- (a) Grant this Petition and enter an Order directing the expunction of all records and files relating to the arrest identified in this petition in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to expunge all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, JAMIE Q. SAMPLE, verify that the statements made in this petition are true and correct to the best of my knowledge, information, and belief. I understand that false statements herein are made subject to penalty of perjury under Tex. Code Crim. Proc. art. 55A.253.

JAMIE Q. SAMPLE
000 EXAMPLE STREET, EXAMPLE CITY, TX 00000

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

PROPOSED ORDER

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IN THE DISTRICT COURT OF {county} COUNTY, TEXAS
EX PARTE {petitionerName}
COUNTY OF EXAMPLE

JAMIE Q. SAMPLE
DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The Pennsylvania State Police, EXAMPLE County Court of Common Pleas, EXAMPLE COUNTY SHERIFF'S OFFICE, and all other criminal justice agencies with records pertaining to this matter are hereby directed to destroy or return all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this petition:

- Affidavit attesting to one expunction per ground (participant executes)
- Information package under art. 55A.203(d)
- Private-entity attachment under art. 55A.253(a)(8)(C) (participant's own list)

Prepared by petitioner using LegalEase RCAP. This is not an official court form.